MEMORANDUM

TO: Jeff Blankenburg
FROM: Matthew Gibson, Managing Partner, Pappas Gibson LLC
DATE: June 8, 2026
RE: Legal considerations for your newsletter business (“Boxscore”)

It was a pleasure speaking with you this morning. What you have built in three weeks is genuinely impressive — roughly 8,000 subscribers from a standing start, a product people actively want in their inbox, and a credible advertising model on the horizon. The purpose of this memo is to lay out the legal issues that go with turning a popular side project into a real business, and to tell you plainly which ones matter, which are routine, and which (if any) are dealbreakers.

The headline: none of these issues is insurmountable. There is no legal obstacle that should stop you from running or growing this business. What you have is a short list of items to put in order and one item — your sports data license — that is really a business-cost decision dressed up as a legal question. Everything else is either careful navigation or routine housekeeping. The table below is the quick version; the sections that follow explain each item.

Issue summary at a glance

Issue	Risk profile	Bottom line
Sports data licensing (your vendor)	High priority – manageable	Secure a written commercial license before you switch on ads. This is the single most important pre-monetization step.
League / MLB intellectual property	Moderate – navigable	The raw statistics are public facts you may use. Avoid logos, official marks, and anything implying league endorsement.
Advertiser content & FTC disclosure	Moderate – navigable	Label ad units as advertising; put an advertising agreement in place with indemnification and content standards.
CAN-SPAM (commercial email)	Low – routine compliance	Add a physical mailing address, keep one-click unsubscribe, honor opt-outs promptly, identify ad content.
Entity & corporate formalities	Low – routine	Adopt an operating agreement, confirm your statutory agent, and keep business and personal finances strictly separate.
Your brand name & clearance	Low	“Box score” is generic, so it is hard for anyone to stop you – but clear the exact name and logo before investing in branding.
Privacy policy / non-U.S. subscribers	Low – routine	Post a privacy policy; a clean opt-in covers most GDPR/CASL exposure for the subscribers you likely have abroad.
Website terms & liability cap	Low – routine	Post terms of use with a data-accuracy disclaimer and a liability cap. Your exposure to free users is nominal.
Insurance	Low – routine	Add media/E&O coverage alongside general liability once revenue starts. Inexpensive relative to the protection.
Tax structure	Low – defer	Coordinate with your accountant on entity tax election and estimated payments as revenue scales.

Shaded rows alternate for readability only and carry no special meaning.

1. Sports data licensing — your most important near-term item

This is the issue worth getting right before anything else, and it is worth understanding precisely *why* it matters, because the popular fear ("will Major League Baseball come after me?") points at the wrong target.

The statistics themselves are facts, and facts are not owned

Box scores, game results, batting lines, and the rest are factual data. U.S. copyright law does not protect facts — only the original selection and arrangement of a compilation receives a thin layer of protection, and even that does not lock up the underlying numbers. Courts have repeatedly confirmed this in the sports context: real-time scores and game data have been treated as unprotectable facts, and the use of player names and statistics (for example, in fantasy sports) has been upheld as protected, with the public-information and First Amendment interests outweighing the leagues' claims. In short, the data you are reporting is not something MLB or anyone else can simply forbid you from publishing.

Your real constraint is your data vendor's contract, not copyright

The practical reason you pay a vendor is not that the facts are owned — it is that assembling a clean, accurate, real-time feed is hard, and the vendor sells access to *their* feed under a license. That license is a contract, and it controls what you may do. Two points follow:

- You are currently operating under what is effectively a free, evaluation/non-commercial arrangement. The moment you place paid advertising, you are using the feed *commercially*, which almost certainly falls outside a non-commercial license. Doing that without upgrading would be a breach of contract with your vendor — the most likely source of a real problem, and an entirely avoidable one.
- So the sequence matters: keep operating under the current terms while you grow, and put a written commercial license in place *before* you turn on revenue. The ~$15K/year baseball figure (and the ~$75K all-sports figure) is a budgeting decision keyed to revenue, not a legal trap — you raised exactly the right instinct in not taking on that cost until the ad income justifies it.

If you ever consider pulling data directly

Scraping a site instead of licensing a feed swaps a clean contract for two messier risks: breach of that site's terms of use, and potential computer-access claims. The law here is unsettled and fact-specific. Given how reasonable the licensed-feed cost is relative to your projected revenue, licensing is the clean path and I'd steer you there.

Bottom line: not a dealbreaker, not even close — but the one item to sequence deliberately. License before you monetize.

2. League trademarks and "official" status

Reporting on a team is not the same as borrowing its brand. You may use a club's name to identify whose game you are reporting — referring to "the Guardians" to tell readers which box score they're looking at is ordinary, descriptive use of the kind newspapers have always made. What you should avoid is anything that crosses into the league's brand identity or implies a relationship that doesn't exist:

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- Don't describe the product as "official," "partnered with," or "endorsed by" any league or club. A short disclaimer that you are independent and unaffiliated is cheap insurance and reinforces exactly the plain, newspaper-like positioning you want.

Bottom line: easily navigable. Use names to report, not marks to brand, and don't imply endorsement.

3. Your own name and brand clearance

There is good news and a caution in the same fact. "Box score" is a generic, descriptive term for the thing itself. **The good news**: that makes it very hard for anyone to claim a monopoly on it, so the risk that someone stops you from using it is low. **The caution**: a brand built on a generic word is also weak — you will struggle to register it as a trademark or to stop a copycat, which is worth knowing before you pour money into the name. (My "inbox score" idea, incidentally, is more distinctive and more protectable — a closer-the-box-score-in-your-inbox play — if you ever want a brand with teeth.)

Regardless of which name you land on, the step is the same and quick: clear the exact name, logo, and domain against existing registered and common-law marks so you are confident you are not stepping on someone else's rights. I'll run a preliminary search as part of my first pass. If you go after a domain someone already holds, we'll want to handle that as a straight purchase rather than anything that looks like trying to take a name you aren't entitled to.

With all of that said, personally, I love the simplicity and almost generic nature of boxscore.email. I wouldn't even say it's consistent with your branding, since you're intentional about the lack of branding, so maybe the more apt description is that it's consistent with your ethos. It's also easy to remember and pass along to friends and family members.

Bottom line: low risk. If you want to use something else, like Inbox Score, we'd need to clear the name before you invest in branding. But I'm also not sure long-term brand protection is really a concern here.

4. Commercial email compliance (CAN-SPAM)

Today your email is a content product. The day it carries paid advertising, it carries commercial content, and the federal CAN-SPAM rules apply. The requirements are not onerous and you already do the hardest one well — easy unsubscribe. To be fully compliant:

- Keep the unsubscribe mechanism clear and conspicuous, and honor opt-outs promptly — the law allows up to ten business days, but your system already does it faster.

Bottom line: routine. A mailing address line and your existing opt-out get you most of the way there.

5. Advertising disclosure and advertiser content

Two distinct points live here, and they cut in slightly different directions from your design instinct — worth flagging since your whole aesthetic is to make ads look like the page.

Disclosure — the look can blend, the nature cannot hide

Your black-and-white, classified-style ads are a great editorial choice, and matching the page is fine. The FTC's concern is different: a reader should be able to tell that an ad is an ad. The anecdote you shared — readers congratulating you on the 100,000th email without noticing the ad you'd tucked in — is precisely the scenario the rules are aimed at. The fix is light-touch: a small, consistent "Advertisement" or "Sponsored" label on ad units. It preserves your newspaper feel (papers labeled their classifieds too) while keeping you clearly on the right side of the line.

Liability for what advertisers say

If an advertiser runs a false or deceptive claim, a publisher can have exposure. You manage that contractually rather than by policing every word. A short advertising agreement (or insertion-order terms) should give you the right to reject or pull any ad, set basic content standards, get the advertiser's representation that their claims are truthful and non-infringing, and require them to indemnify you if their content causes a problem. That turns a diffuse risk into someone else's contractual obligation.

Bottom line: navigable. Label ad units; paper the advertiser relationship so their content is their responsibility.

6. Website terms, disclaimers, and your liability to users

As I mentioned on the call, your exposure to subscribers is genuinely small. The service is free, you collect nothing but an email address, and people can leave whenever they like. We harden that with short documents/terms on the site:

- Terms of use, including a data-accuracy disclaimer (statistics are provided "as is," with no warranty of accuracy — important for a numbers product) and a limitation-of-liability cap.

Bottom line: routine. With a free service, a disclaimer, and a liability cap, the user-side risk is about as low as it gets.

7. Privacy and non-U.S. subscribers

You are collecting email addresses, so you need a privacy policy that says what you collect, how you use it, that you do not sell it, and how to opt out. Your data practices are clean and simple — that's an asset, and the policy should reflect it rather than dress it up. With a list your size you almost certainly have some subscribers abroad; a clear opt-in plus a published privacy policy and honored unsubscribes covers the great majority of EU (GDPR) and Canadian (CASL) exposure in practice. The U.S. state privacy laws generally have size thresholds you don't yet hit, but they're worth revisiting as you scale toward six figures.

Bottom line: routine. Post a privacy policy; keep the opt-in clean.

8. Entity structure and corporate formalities

You've done the hard parts — the single-member LLC is registered with the State of Ohio and you have your EIN. A few items finish the job and, importantly, preserve the liability shield the LLC is there to provide:

- **Operating agreement.** Even a single-member LLC should have one. It's short, there are few variables, and it both documents the entity and helps demonstrate that the LLC is real and separate from you personally. I'll draft this for you.
- **Keep finances separate.** A dedicated business bank account, no commingling of personal and business funds, and contracts signed in the LLC's name. This is the single most effective habit for keeping the liability shield intact.

Bottom line: routine. Adopt the operating agreement, keep the money separate.

9. The ad-broker relationship

The broker who approached you is a real opportunity, but define the relationship in writing before money moves. The key questions: is the broker an independent sales rep working on commission; who actually contracts with the advertiser — you or the broker; what is the commission and is it exclusive; what is the term; and who bears the credit risk if an advertiser doesn't pay. A short agreement answers all of that and prevents the predictable disputes.

Bottom line: navigable. A one-page rep/agency agreement before the first dollar.

10. Tax — coordinate with your accountant

This sits with Wes rather than with me, but worth flagging so it's on the radar. By default your single-member LLC is a disregarded entity, so profit flows onto your personal return and is subject to self-employment tax. As revenue grows, an S-corporation election can reduce that self-employment tax — a conversation to have with your accountant once the numbers are real. Plan for quarterly estimated payments, and confirm whether any sales/use tax applies to ad sales (Ohio generally doesn't tax advertising services, but verify). Happy to coordinate with him directly.

Bottom line: defer to Wes; revisit the tax election as revenue scales.

A word on sequencing

As I touched on, if we step back from the legal checklist: at three weeks and 8,000 subscribers with near-zero operating cost, your single most valuable move is to keep growing the list. The advertising model does not have to be perfect out of the gate — a few months of less-than-optimal ad revenue costs you very little compared with the value of subscriber growth, and it would be a mistake to sell or over-engineer this so early. The legal work above is the groundwork that lets you grow with confidence: do it now, while it's cheap and simple, so that none of it can bite you at 100,000 subscribers.

Recommended next steps

To put a solid foundation under the business, I recommend we prepare the following. The order below is roughly the order of priority:

- **Single-member LLC operating agreement.** Short and quick, and it helps establish that the LLC is real and separate from you personally.
- **Website terms of use,** including a data-accuracy disclaimer (statistics provided "as is," no warranty of accuracy) and a limitation-of-liability cap.
- **Privacy policy** reflecting your clean, minimal data practices.
- **Advertising agreement / insertion-order terms.** Content standards, your right to reject or pull any ad, the advertiser's warranty that its claims are truthful and non-infringing, and indemnification back to you — this is what shifts responsibility for ad content onto the advertiser.
- **Sales-rep / broker agreement** defining commission, exclusivity, term, who contracts with the advertiser, and who bears the credit risk if an advertiser doesn't pay.
- **IP assignment** moving the software, content, brand, and domain into the LLC, so the company — not you personally — owns its core asset. This matters the moment any investor or buyer looks closely.

Alongside those documents I'll run a preliminary name and trademark clearance, give you a short email footer block (mailing address, unsubscribe, and an "Advertisement" label) so your sends are compliant from day one, and review your commercial data license once the vendor produces it. That license will be the highest-dollar contract you sign, so it warrants a careful read of its commercial-use scope and termination terms.

Fee — and an alternative I'd genuinely like to offer

All in, this is roughly five hours of work. My hourly rate is $490, and you are welcome to engage me on that straightforward basis.

I'll also put an honest alternative on the table: I enjoyed chatting with you and love what you're building. As I mentioned, I was an avid USA Today box score reader as a kid. We took road trips in the summer, and I remember being occupied for hours looking at the box scores and the statistical leaders. I think websites nowadays are way too cluttered and hard to navigate, and what you created is such a wonderful way for people to start their day. Anyway, I'd love to be involved. If you're open to it, I would happily do all of this foundational work at no charge in exchange for a small stake in the company, and then I'd be available as needed for a few hours a month as additional issues pop up. I have no idea how to value what the stake would be, so I won't even float it, but if you wanted to chat through it, let me know.